

SENATE No. 601

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve to protect drinking water and public health from sand mining pollution.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Meg Sheehan</i>		
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>3/12/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>4/8/2025</i>

SENATE No. 601

By Mr. Fernandes (by request), a petition (accompanied by resolve, Senate, No. 601) of Meg Sheehan and Paul W. Mark that provisions be made for an investigation and study to protect drinking water and public health from sand mining pollution. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve to protect drinking water and public health from sand mining pollution.

1 **Resolved**, that the General Laws are hereby amended by inserting after chapter xx, the
2 following Section:

3 (a) There shall be created a 5 member advisory panel which shall consist of the following
4 members or their designees: a designee from the office of the secretary of energy and
5 environmental affairs with an Expertise in geographic information systems (GIS); 1 member
6 appointed by the President of the Senate the Speaker of the House of Representatives with a
7 knowledge of ecology, ecosystems, forestry and biodiversity and or from the office of the State
8 Geologist; 1 member from Community Land & Water Coalition or their designee; and 1 expert
9 in hydrology nominated by the University of Massachusetts and appointed by the Governor.

10 (b) The panel shall serve in an advisory capacity only and shall meet monthly or more
11 frequently in public meetings to investigate the scope and scale of sand mining.

12 (c) The investigation shall address sand mining in the Commonwealth including (1) the
13 current and potential impact on drinking water; (2) impact on Environmental Justice
14 communities; (3) climate change mitigation and resilience; (4) air pollution including worker and
15 public exposure to respirable crystalline silica from sand mines.

16 (d) Said investigation shall conclude within two years and include recommendations for
17 regulatory changes to protect drinking water, worker and public health, and the environment.
18 Said changes may include changes to licensing laws for mining, Part I, Title II, Chapter 21B,
19 Section 5 of the General Laws.